

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: September 14, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Goldman vs. Plastic Surgery Group, A Medical Corporation 30-2026-01548884	<u>Demurrer</u> Defendants Michael W. Niccole, M.D.'s and Michael W. Niccole, A Professional Corporation's Demurrer to Plaintiff's First Amended Complaint is OVERRULED. Defendants Michael W. Niccole, M.D. and Michael W. Niccole, A Professional Corporation shall file an answer or other pleading in response to the First Amended Complaint within 10 days of service of the notice of ruling. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendants Michael W. Niccole, M.D. and Michael W. Niccole, A Professional Corporation (Niccole Defendants) demur to the 3rd Causes of Action of First Amended Complaint (FAC) filed by Plaintiff Julia Goldman. <u>Meet and Confer</u> The Civil Procedure Code requires that: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer <i>in person, by telephone, or by video conference</i> with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a), italics added.) The demurrer papers must include a declaration stating that the demurring party has complied with the above requirement. (Code Civ. Proc., § 430.41, subd. (a)(3).) Here, the declaration filed by Nicolle Defendants states that Plaintiff and Nicolle Defendants met and conferred in writing but does not indicate that they communicated in any other manner. (See Decl. of David J. Rubaum, Esq., (Rubaum Decl.), ¶ 4, Exh. A.)
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		This effort was insufficient as the parties are required to meet and confer in person, by telephone, or by videoconference. However, the court may not overrule or sustain a demurrer solely because the meet and confer process was insufficient. (See Code Civ. Proc., § 430.41, subd. (a)(4).) Further, the demurrer is fully briefed. Therefore, the court will decide the motion on the merits. However, Niccole Defendants are encouraged to strictly comply with the requirements of the Civil Procedure Code and Rules of Court in the future. Future violations may result in the court disregarding Niccole Defendants' motion, opposition, or reply papers. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs.</i>
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		<i>Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) In addition, the "allegations must be liberally construed, with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) Nonetheless, it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>3rd Cause of Action (Medical Battery)</u> Battery in the medical context "is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent." (<i>Saxena v. Goffney</i> (2008) 159 Cal.App.4th 316, 324.) Thus, medical battery may occur where "a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which [the patient's] consent was not obtained." (<i>Cobbs v. Grant</i> (1972) 8 Cal.3d 229, 239.) In addition, "[i]f the [doctor] exceeds the terms or conditions of the consent, the consent does not protect the actor from liability for the excessive act." (<i>Ashcraft v. King</i> (1991) 228 Cal.App.3d 604, 610; see ; <i>Piedra v. Dugan</i> (2004) 123 Cal.App.4th 1483, 1497–1498 [same].) To plead a claim for medical battery, the patient must allege: (1) the defendant performed a medical procedure or treatment without her consent, or that she consented to one medical procedure, but the physician intentionally performed a substantially different procedure or exceeded the terms of the consent; (2) the patient suffered harm; and (3) defendant's misconduct was a substantial cause of that harm. (<i>Conte v. Girard Orthopaedic Surgeons Medical Group, Inc.</i> (2003) 107 Cal.App.4th 1260, 1269; see also CACI 530A.)
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		The Complaint alleges that Plaintiff was a patient of Nicolle Defendants who consented to a breast implant replacement, with a reduction in the size of the implants, and a relatively non-intrusive liposuction of the surrounding area. (See FAC, ¶¶ 17-18.) The Complaint then pleads that Nicolle Defendants performed surgical procedures on Plaintiff on October 1, 2024, (see <i>id.</i>, ¶¶ 21-22) and that afterwards: Plaintiff experienced a significant amount of pain in areas of her body that she did not expect, particularly on her sides and underarm areas Plaintiff also noticed unexpected and unsightly scars in those areas. In addition to the pain and unsightly scars on her sides and underarms, Plaintiff was concerned that she had what appeared to be unusual swelling and puffiness in her chest, particularly between her breasts. (<i>Id.</i>, ¶ 23.) The Complaint goes on to assert that at an appointment two weeks after the surgery, Plaintiff discussed the pain, swelling, and scars with a nurse, who stated that “during the surgery, Dr. Niccole had decided on his own to excise excess skin on her sides and underarm areas because ‘he thought it would look better’ and Plaintiff might be mad if he left it there.” (<i>Id.</i>, ¶ 24.) The FAC alleges that Plaintiff was shocked because she and Defendant Michael W. Nicolle “had never discussed the possibility that he would cut out, or had permission to cut out, any excess skin on the sides of her body or near her underarms while he was performing what was generally a breast implant surgery, or what the possible risks and consequences of doing so would be.” (<i>Ibid.</i>) The FAC pleads that Nicolle Defendants committed medical battery because: 1. Plaintiff consented to Nicolle Defendants performing a breast replacement, breast lift, and liposuction procedure, (see <i>id.</i>, ¶ 58); 2. Defendant Michael W. Nicolle “decided, mid-surgery, to excise portions of what was described as loose skin on the sides of
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		Plaintiff's torso," without discussing the procedure with Plaintiff or obtaining her consent, (<i>id.</i>, ¶ 59); 3. As a substantial result of Nicolle Defendants' conduct, Plaintiff was damaged, (see <i>id.</i>, ¶ 60). This is sufficient to make out a claim for medical battery. Nicolle Defendants, however, contend that the 3rd Cause of Action fails pursuant to <i>Cobbs v. Grant</i>. In that case, the plaintiff consented to a surgery without being informed of any of the inherent risks of the surgery. (<i>Cobbs v. Grant, supra</i>, 8 Cal.3d at p. 234.) After undergoing the surgery, the plaintiff experienced several complications, which were a known risk of the surgery and resulted in plaintiff requiring additional surgeries. (<i>Id.</i> at pp. 234-35.) The Supreme Court held that when an undisclosed potential complication results, the occurrence of which was not an integral part of the treatment procedure but merely a known risk, failing to obtain informed consent constitutes negligence. (See <i>id.</i> at pp. 238-40.) The Court in <i>Cobbs v. Grant</i> also ruled that the medical battery theory should be reserved for those circumstances when the patient gives permission for one type of treatment and the doctor performs another. (<i>Id.</i> at p. 240.) Nicolle Defendants argue that the skin incision procedure is part of the breast replacement, breast lift, and liposuction procedure to which Plaintiff had already consented, and therefore, performing the skin incision cannot constitute medical battery. However, the FAC makes it clear that Plaintiff considers it to be a separate and different surgical procedure. (See <i>id.</i>, ¶¶ 24, 59.) On demurrer, the court must accept as true all facts properly pleaded in the FAC and anything that may be reasonably inferred from the facts alleged in FAC. Further, the case law is clear that this court cannot decide whether one medical procedure is the same
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		or part of another medical procedure at the demurrer stage. In <i>Kaplan v. Mamelak</i> (2008) 162 Cal.App.4th 647, the Court of Appeal noted that while “<i>Cobbs</i> offers several examples of medical battery based on a physician's performance of a substantially different procedure[,] [t]he examples do not seem to lend themselves to any overarching test for deciding at the margin whether a medical procedure is ‘substantially different’ from the authorized procedure, and <i>Cobbs</i>’s description of them offers little guidance.” (<i>Id.</i> at p. 646.) The <i>Kaplan v. Mamelak</i> Court ultimately held that: In the absence of any definitive case law establishing whether operating on the wrong disk within inches of the correct disk is a “substantially different procedure,” we conclude the matter is <i>a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer.</i> (<i>Id.</i> at p. 647, italics added; see also <i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 670 [“As in <i>Kaplan</i>, whether this alleged conduct was within the scope of plaintiff's consent ‘is a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer.’”], quoting <i>Kaplan v. Mamelak</i> (2008) 162 Cal.App.4th at p. 647.) Whether skin excision was the same as or part of breast replacement, breast lift, and liposuction is a factual question which the court cannot decide at this stage, and the court must accept as true the allegations of the FAC that skin excision is a different procedure for which she did not consent. Therefore, the court will overrule the demurrer to the 3rd Cause of Action. Plaintiff shall give notice of this ruling.
2	Borchard vs. Baumer of America, Inc. 30-2026-01565999	<u>Application to Appear Pro Hac Vice</u> The Application of Moritz C. Schumann to Appear as Counsel Pro Hac Vice is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15.

		Defendant Baumer of America, Inc. is ORDERED to file amended application papers consistent with this ruling. Defendant Baumer of America, Inc. is ORDERED to serve the original and amended application papers upon all parties who have appeared in this action and the State Bar of California at its San Francisco office, and to file proof(s) of service showing such service, within 30 days of this ruling. <u>Pending Motion</u> Counsel Moritz C. Schumann of Schumann Burghart LLP in New York, New York applies to appear as counsel <i>pro hac vice</i> for Defendant Baumer of American, Inc. <u>Standards to Appear Pro Hac Vice</u> An attorney in good standing in another jurisdiction who has been retained to appear in a case pending this court may apply to appear as counsel <i>pro hac vice</i> in the State of California, so long as an active member of the State Bar of California is associated as attorney of record in the case. (Cal. Rules of Court, rule 9.40(a).) The attorney desiring admission <i>pro hac vice</i> must file a verified application and a proof of service showing service by mail of a copy of the notice of hearing and application on all parties who have appeared in the case. (Cal. Rules of Court, rule 9.40(c)(1).) The notice of hearing and application papers must also be served on the State Bar of California at its San Francisco office, along with payment of a \$500.00 fee. (<i>Id.</i>, rule 9.40(c)(1) & (e).) The notice of hearing must be given in the time prescribed by Civil Procedure Code section 1005. (<i>Id.</i>, rule 9.40(c)(1).) The application must state: 1. the applicant's residence and office addresses; 2. the courts to which the applicant has been admitted to practice and the dates of admission;
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		3. that the applicant is a member in good standing in those courts; 4. that the applicant is not currently suspended or disbarred in any court; 5. the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and 6. the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).) The "application to be admitted 'pro hac vice' is addressed to the court's sound discretion." (<i>Big Lots Stores, Inc. v. Superior Court of San Diego County</i> (2020) 57 Cal.App.5th 773, 779.) Here, the court is unable to find a proof of service showing that the application papers have been served on all parties who have appeared in this action, including Plaintiff Thomas Boarchard. There is a possibility that Plaintiff has not received notice of this application as Plaintiff has not filed a response to the application. In addition, the court cannot find a proof of service establishing that the application papers have been served on the State Bar at its San Francisco address. Further, while Counsel states that he has paid the \$500 application fee, the application papers do not include the payment confirmation which was to be attached as Exhibit A. (See Decl. of Mortiz C. Schumann in Supp. of Application to Appear Pro Hac Vice (Schumann Decl.), ¶ 9.) Finally, the application papers do not include Counsel's residential address, as required by California Rules of Court rule 9.40(d). Therefore, the court will continue the hearing to allow Defendant to file amended application papers
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		and proofs of service showing service of the original and amended application papers upon all parties who have appeared in this action and the State Bar. Defendant shall give notice of this ruling.
3	Phan vs. Fountain Valley Regional Hospital and Medical Center 30-2025-01500005	<u>Motion to Furnish Security</u> Defendant Fountain Valley Regional Hospital and Medical Center's Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security is GRANTED in part and DENIED in part. Defendant Fountain Valley Regional Hospital and Medical Center's Request for Judicial Notice of Court Records is GRANTED as to Exhibits 1-8. (See Evid. Code, § 452, subd. (d).) However, Defendant Fountain Valley Regional Hospital and Medical Center is encouraged to strictly comply with all provisions of the Civil Procedure Code and California Rules of Court in the future, including the provision that requires "[a]ny request for judicial notice must be made in a separate document." (Cal. Rules of Court, rule 3.1113(I).) Future violations may result in the court denying or disregarding non-compliant papers. Plaintiff Tin Quoc Phan is ORDERED to post an undertaking or bond, or furnish security, in the amount of \$15,110 within 60 days of receiving notice of this ruling. Plaintiff Tin Quoc Phan is ORDERED to file and serve a notice of undertaking, bond, or furnishing of security and attach evidence of the undertaking, bond, or furnishing of security within 60 days of receiving notice of this ruling. If Plaintiff Tin Quoc Phan fails to abide by the court's orders, Defendant Fountain Valley Regional Hospital and Medical Center may move <i>ex parte</i> for dismissal pursuant to Civil Procedure Code section 391.4. <u>Furnishing Security</u> Code of Civil Procedure section 391.1 states that:

		In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant. (Code Civ. Proc. § 391.1, subd. (a).) Code of Civil Procedure section 391.3 further provides that: (a) Except as provided in subdivision (b), if, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix. (b) If, after hearing evidence on the motion, the court determines that the litigation has no merit and has been filed for the purposes of harassment or delay, the court shall order the litigation dismissed. This subdivision shall only apply to litigation filed in a court of this state by a vexatious litigant subject to a prefiling order pursuant to Section 391.7 who was represented by counsel at the time the litigation was filed and who became in propria persona after the withdrawal of his or her attorney. (c) A defendant may make a motion for relief in the alternative under either subdivision (a) or (b) and shall combine all grounds for relief in one motion. (Code Civ. Proc., § 391.3.)
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		In addition, “[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished.” (Code Civ. Proc., § 391.4.) Here, Plaintiff was declared a vexatious litigant on October 22, 2025, in the related case, <i>Phan Tin Quoc v. Fountain Valley Regional Hospital</i>, Orange County Superior Court Case Number 30-2023-01337174. Plaintiff was also declared a vexatious litigant on October 27, 2025, in <i>Tin Quoc Phan v. County of Orange</i>, Orange County Superior Court Case Number 30-2025-01496640. Further, there is no reasonable probability that Plaintiff will prevail in this action. Plaintiff’s claims are barred by the statutes of limitations contained in Civil Procedure Code sections 335.1 and 340.5. Plaintiff’s claims also are by the principles of claim preclusion. Therefore, the court will grant the motion to furnish security. <u>Amount of Security</u> Defendant Fountain Valley Regional Hospital and Medical Center (Defendant FVRH) seeks security in the amount of \$81,642.50, consisting of \$66,360 in anticipated fees and costs through trial in this action and \$15,282.50 representing the judgment and costs entered against Plaintiff in the prior action. Defendant FVRH estimates that fees and costs through motions for summary judgment or summary adjudication will amount to \$15,110 and that trial-related fees and costs will total an additional \$51,250. (See Decl. of Paul L. Tetreault (Tetreault Decl.), ¶ 13.) Security in the amount of \$15,110 is supported by the evidence. However, the additional amount of \$51,250 is speculative. For example, Defendant FVRH characterizes the possibility that Plaintiff will succeed in bringing the case to trial as an “off-chance.” (See <i>ibid.</i>)
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		In addition, the security should not include the \$15,282.50 awarded in the prior action. Section 391 authorizes security for reasonable expenses incurred "in or in connection with" the litigation instituted or maintained by the vexatious litigant. (See Code Civ. Proc., § 391.1, subd. (c).) The judgment in the prior action is a separate, existing obligation and is not an expense incurred in defending the present action. Thus, the court will order that Plaintiff furnish security in the amount of \$15,110. Defendant FVRH shall give notice of this ruling.
4	Biotronik, Inc. vs. Letarte 30-2024-01436213	<u>Motion to Seal</u> Defendant Inari Medical, Inc.'s Amended Motion to Seal Portions of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint is GRANTED. The court ORDERS that the following shall be sealed: 1. Exhibit 3 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229), and 2. Exhibit 4 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229). <u>Pending Motion</u> Defendant Inari Medical, Inc. (Defendant Inari) moves to seal Exhibits 3 and 4 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint (ROA #229). <u>Standard for Motion to Seal</u> "Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c); see <i>In re Marriage of Tamir</i> (2021) 72 Cal.App.5th 1068, 1078 [public's right of

		access to court records is based on both common law right of access to public documents, as well as constitutional right grounded in the First Amendment].) To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, Rule 2.551, subd. (b)(1).) The motion must be served on all parties, and unless the court orders otherwise, a complete copy of the document must be served on all other parties that already possess copies, along with the redacted version. (Cal. Rules of Court, Rule 2.551, subd. (b)(2).) To grant a motion to seal, the court must expressly find that: 1. an overriding interest exists that overcomes the right of public access to the record; 2. the overriding interest supports sealing the records; 3. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. the proposed sealing is narrowly tailored; and 5. no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Examples of documents that may qualify to be sealed are: • Documents containing trade secrets, (see <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Tech., Inc.</i>, <i>supra</i>, 182 Cal.App.4th at p. 988 [business' quality control records and complaint handling procedures may be sealed]); • Documents containing material protected by a privilege, (see <i>Huffy Corp. v.</i>
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		<i>Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [documents protected by attorney-client privilege may be sealed]); Confidential settlement agreement, (see <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283). A sealing order must: (a) specifically state facts supporting the above findings; and (b) be narrowly tailored (<i>i.e.</i>, it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file). (See Cal. Rules of Court, rule 2.550(e)(1); Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (Rutter 2017) ¶ 9:418.1.) In this case, Defendant Inari contends that the documents qualify to be sealed because the parties entered into a stipulated protective order and Defendants designated the documents as confidential. Defendants point to the Stipulation and Protective Order – Confidential and Highly Confidential Designations agreed to by the parties, (see ROA #58), and the fact that Defendants have designated the documents as “Confidential” or “Highly Confidential – Attorneys’ Eyes Only.” However, an agreement “alone is insufficient to constitute an overriding interest to justify sealing.” (<i>McNair v. National Collegiate Athletic Ass’n</i> (2015) 234 Cal.App.4th 25, 35–36.) California Rules of Court rule 2.551(a) states that “The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” Instead, there must be “a specific showing of serious injury.” (<i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1282.) Defendant Inari also presents evidence that the documents consist of “emails from Andrew Letarte and Angelo Mazza’s respective interview processes with Inari” and that they “contain sensitive information showcasing the interview process, identifying contacts and customers Letarte and
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		Mazza communicated with during the process, and what Letarte and Mazza learned from those communications.” (Decl. of Linda Kaufman in Supp. of Def. Inari’s Amended Mot. to Seal Portions of Pltf.’s Amended Mot. for Leave to File Amended Compl. (Kaufman Decl.), ¶ 3.) Defendant Inari also avers that it “treats this information as it would any other sensitive employment information or confidential information, including compensation package terms, salaries, and benefits information,” (<i>ibid.</i>) and that it “does not make this information public,” (<i>id.</i>, ¶ 4). Finally, Defendant Inari shows that “disclosure could potentially put Inari at a disadvantage, and essentially undermine the efforts expended in creating its unique process, in protecting details about its business and products, and in keeping the information nonpublic.” (<i>Ibid.</i>) The interest in protecting confidential business information and trade secrets is sufficient to overcome the right of public access and supports the sealing of the documents. (See <i>In re Providian Credit Card Cases</i>, supra, 96 Cal.App.4th at p. 300.) Defendant Inari also has shown that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. Further, the documents are relatively short but contain a substantial amount of confidential business information interspersed throughout them. Thus, the proposed sealing is narrowly tailored and there are no less restrictive means to achieve the overriding privacy interest. In addition, the requirements of Rule 2.551 have been met. No other party to this action or third-party has opposed the motion or shown that the requirements of Rule 2.550 or Rule 2.551 have not been met. Therefore, the court will grant the motion to seal. Defendant Inari shall give notice of this ruling.

5	Ragland vs. Wells Fargo Bank, N.A. 30-2023-01346326	<u>Demurrer</u> Defendant Onity Group, Inc.'s Demurrer to First Amended Complaint is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15. In light of Plaintiff Sawyer Ragland's Notice of Urgent Cardiac Procedure, Medical Unavailability, Affected Proceedings, and Preservation of Rights filed September 2, 2026 (ROA #339), the court will continue the hearing on this matter. The court clerk shall give notice of this ruling.
6	Kim vs. Williams 30-2023-01317262	<u>Motion to Quash</u> Defendant Securitas Security Services USA, Inc.'s Motion to Quash Deposition Notice of Nonparty Consultant Mark Mooring is GRANTED in part and DENIED in part. Defendant Securitas Security Services USA, Inc.'s is ORDERED to produce Mark Mooring for deposition at a mutually agreeable date and time, and in the manner specified in the Notice of Deposition of Mark Mooring, no later than 10 days after service of the notice of ruling. The deposition of Mark Mooring shall be limited in scope to questions regarding the foundational basis of any of the opinions and analyses that Mark Mooring has provided in support of any motions for summary judgment or summary adjudication. <u>Pending Motion</u> Defendant Securitas Security Services USA, Inc. (Defendant Securitas) moves to quash the Notice of Deposition of Mark Mooring (Notice of Deposition). <u>Standard to Take and Quash Depositions</u> Any party may obtain discovery by taking in California the oral deposition of any person, including any party to the action. (See Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition of a person who is under the jurisdiction of the court shall give written notice of the deposition. (See Code Civ. Proc., § 2025.220, subd. (a).)

		In addition, A nonparty may be required to appear to give oral testimony in a deposition and/or to produce documents by serving the nonparty with a subpoena with sufficient time in advance to allow the nonparty a reasonable opportunity to travel to the place of deposition and/or to locate and produce any designated documents. (See Civil Procedure Code, §§ 1985, 1987, 2020.220.) The Civil Procedure Code provides that: If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things . . . at the taking of a deposition, the court, upon motion reasonably made . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. (Code Civ. Proc., § 1987.1, subd. (a).) In general, the burden of establishing good cause for issuance of an order denying or limiting discovery falls on the shoulders of the party seeking the protection, who must make this showing by a preponderance of the evidence. (<i>Coriell v. Superior Court</i> (1974) 39 Cal.App.3d 487, 492; <i>Stadish v. Superior Court</i> (1999) 71 Cal.App.4th 1130, 1145.) <u>Expert Witness Depositions</u> At any time after a trial date has been set, any party may demand the mutual and simultaneous exchange by all parties of a list containing the name and address of any expert witness the other parties expects to offer in evidence at the trial. (See Code Civ. Proc., § 2034.210, subd. (a).) If a designated expert witness is an employee of the designating party or has been retained by the designating party, that party must also include a declaration stating the qualifications, general substance of the testimony, and the hourly and daily of the expert witness, among other things. (See Code Civ. Proc., § 2034.210, subd. (b); Code Civ. Proc., § 2034.260, subd. (c).) The above demand shall be made no later than the 10th day after the initial trial date has been set or
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		70 days before that trial date, whichever is closer to the trial date. (See Code Civ. Proc., § 2034.220.) In addition, the date specified for the exchange of expert witness information "shall be 50 days before the initial trial date, or 20 days after service of the demand, whichever is closer to the trial date, unless the court, on motion and a showing of good cause, orders an earlier or later date of exchange." (Code Civ. Proc., § 2034.230, subd. (b).) Upon receiving from another party the list designating that party's expert witnesses, a party may take the deposition of any person on the list. (See Code Civ. Proc., § 2034.280, subd. (a).) The party designating an expert witness must make that expert witness available for deposition upon service of a proper notice of deposition and payment of the expert's fees by the deposing party or the party is prohibited from calling that expert witness at trial. (See Code Civ. Proc., §§ 2034.280, subd. (c), 2034.300, subd. (d), 2034.410, 2034.450.) In addition, an expert witness whose deposition has been noticed must produce any materials or category of materials called for by the deposition notice, including electronically stored for information, no later than three business days before his or her deposition. (Code Civ. Proc., § 2034.415.) Defendant Securitas argues that the Notice of Deposition should be quashed because it is premature. At the time the Notice of Deposition was served, no demand for the exchange of expert witnesses had been made and no expert witnesses had been designated by the parties, including Mark Mooring. However, in <i>St. Mary Medical Center v. Superior Court</i>, the Court of Appeal held that a party in a summary judgment proceeding should be allowed to depose an expert who supplies a declaration or affidavit in support of or in opposition to a summary judgment or summary adjudication when there is a legitimate question regarding the foundation of the opinion of the expert. (<i>St. Mary Medical Center v. Superior Court</i> (1996) 50 Cal.App.4th 1531, 1538-1539.) As the Court of Appeal explained:
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		[W]here a party presents evidence that raises a significant question relating to the foundation of an expert's opinion filed in support of or in opposition to a motion for summary judgment or summary adjudication, a deposition limited to that subject should be allowed. (<i>Id.</i> at p. 1534.) The Court in <i>St. Mary Medical Center v. Superior Court</i> reasoned that "it would defeat the purpose of the summary procedure were we to recognize an absolute right of a party involved in the process to depose any person who provides evidence in support of or opposition to the proceeding." (<i>Id.</i> at p. 1538.) However, in order for a party to request such a deposition, "there must be objective facts presented which create a significant question regarding the validity of the affidavit or declaration which, if successfully pursued, will impeach the foundational basis of the affidavit or declaration in question." (<i>Id.</i> at pp. 1540-1541.) Whether to compel such a deposition falls within the sound discretion of the trial court. (<i>Id.</i> at p. 1540.) Here, Defendant Securitas presented the declaration of Mark Mooring in support of its motion for summary judgment, or in the alternative summary adjudication. Therefore, Plaintiffs may seek to depose Mooring pursuant to <i>St. Mary Medical Center v. Superior Court</i>. Defendant Securitas points out that its motion for summary judgment has been heard and ruled upon. This is true. However, its Co-Defendants, Greenlaw Property Management and 73 LPCP6 (collectively, Defendants Greenlaw and 73 LPCP6), have also filed a motion for summary judgment, or in the alternative, summary adjudication that also relies upon the declaration of Mooring. That motion will not be heard for another month and Plaintiff's deadline to file and serve an opposition, or to request a continuance of the hearing in order to obtain discovery, has not
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	passed. (See Code Civ. Proc., § 437c, subd. (b)(2), (h).) Defendant Securitas contends that Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, is identical to the motion brought by Defendant Securitas and that "there is every reason to expect Plaintiffs will make the same arguments as they did in opposing Securitas' MSJ, including challenging the bases for Mr. Mooring's opinions." (Reply to Pltf.'s Opp'n to Mot. to Quash Deposition Notice of Nonparty Consultant Mark Mooring (Reply) at p. 2.) However, the fact that Plaintiffs can and will make the same arguments does not mean that they are not entitled to obtain discovery in order to develop <i>additional</i> arguments that they were not able to make in opposition to the motion by Defendant Securitas. To the extent that Defendant Securitas contends that Plaintiffs do not need those additional arguments because they have already defeated Defendant Securitas' motion for summary judgment, or in the alternative, summary adjudication, the court cannot prejudge Defendants Greenlaw's and 73 LPCP6's motion. It would be inequitable to allow Defendant Securitas to quash the Notice of Deposition on the basis that Plaintiffs do not need the deposition to defeat Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, while at the same time allowing Defendants Greenlaw and 73 LPCP6 to argue their motion. If Defendants wish to avoid the need for the deposition of Mooring, they may withdraw the Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, or at the least, withdraw the declaration of Mooring. Defendant Securitas also argues that <i>St. Mary Medical Center v. Superior Court</i> is distinguishable because it involved an expert witness' declaration that was offered to defeat a motion for summary judgment.
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	This argument is without merit as the Court of Appeal in that case made it clear that its holding applied to any expert witness whose opinion had been "filed in support of or in opposition to a motion for summary judgment or summary adjudication." (<i>St. Mary Medical Center v. Superior Court, supra</i>, 50 Cal.App.4th at p. 1534.) Defendant Securitas next claims that Plaintiffs have not submitted evidence that raises a significant question relating to the foundation of Mooring's opinion. This argument also is incorrect. With respect to Defendant Securitas' motion for summary judgment, or in the alternative, summary adjudication, Plaintiffs presented evidence and argument that Mooring's opinion lacked foundation and the court credited those arguments. (See ROA #219 at pp. 2-3.) <u>No Subpoena Served</u> Defendant Securitas further contends that the Notice of Deposition is improper because Mooring is a nonparty who may only be deposed by serving a subpoena, rather than a notice of deposition. Normally, an expert witness may be deposed by serving a notice of deposition, but only after the expert witness has been designated by a party. (See Code Civ. Proc., § 2034.280, subd. (a).) However, <i>St. Mary Medical Center v. Superior Court</i> created the right to depose based upon a party's use of an expert witness' declaration to support or oppose a motion for summary judgment, but did not answer the question of whether a party submission of an expert witness' declaration "designates" that expert witness so that the opposing party may serve a notice of deposition. The court need not answer that question in this case because Defendant Securitas has not pointed to any harm it has suffered as a result of Plaintiffs service of a notice of deposition rather than a subpoena. In fact, Defendant Securitas does not indicate any information that would have been contained in a subpoena that was not contained in the Notice of Deposition here.
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		Therefore, the court rejects the argument that the Notice of Deposition must be quashed because a subpoena, rather than a notice of deposition, should have been served. <u>Abuse of the Discovery Process</u> Defendant Securitas also asserts that the Notice of Deposition is an abuse of the discovery process and was served in bad faith. Defendant Securitas claims that Plaintiffs have long known about the Mooring declaration yet waited almost 6 months to serve the Notice of Deposition. The problem with this argument is that Defendant Securitas fails to point to any advantage that Plaintiffs gained or any disadvantage that was inflicted on Defendants by Plaintiffs' delay in serving the Notice of Deposition. If anything, the delay hurt Plaintiffs as they were unable to take the deposition of Mooring before they filed their opposition to Defendant Securitas' motion for summary judgment, or in the alternative, summary adjudication, and before the court heard and decided that motion. To the extent that the taking of the deposition may delay the hearing on Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, Plaintiffs served the Notice of Deposition on May 1, 2026, two months <i>before</i> Defendants Greenlaw and 73 LPCP6 filed their motion. Thus, the Notice of Deposition could not have been a bad faith effort to delay the hearing on the Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication. In any case, a delay in hearing Defendants Greenlaw's and 73 LPCP6's motion in order to obtain further discovery is specifically allowed by Civil Procedure Section 437c(h). That provision states that: If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be
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		presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. (Code Civ. Proc., § 437c, subd. (h).) Thus, the court rejects the argument that the Notice of Deposition was served in bad faith. (fn.1) (fn.1) Defendant Securitas also argues that the hearing on any motion for summary judgment should not be continued on the basis of the Notice of Deposition and Section 437c. This argument is premature as no such request has been made. <u>Attorney Work-Product Doctrine and Scope of Deposition</u> Defendant Securitas argues that all of Mooring's opinions, analyses, and communications are protected from disclosure by the attorney work-product doctrine. However, Defendant Securitas fails to explain its reasoning or provide any authority for the proposition that it may submit the opinions and analyses of its expert witness in support of a motion for summary judgment, or in the alternative, summary adjudication, and at the same time, shield itself from discovery regarding those opinions and analyses. At a minimum, such a contention would run contrary to the ruling in <i>St. Mary Medical Center v. Superior Court</i>, in which the Court of Appeal held that a party should be allowed to depose the expert witness on the foundation of an expert's opinion and analyses. At the same time, it is true, as Defendant Securitas argues, that the Notice of Deposition is not limited to the subject of the foundation of Mooring's opinion and analyses in his declaration. Therefore, to the extent that the Notice of Deposition seeks to question Mooring about subjects other than the foundation of his opinion and analysis in his declaration, the court will grant the motion.
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		Furthermore, this ruling is made without prejudice to any party's right to expert discovery as set forth in Civil Procedure Code sections 2034.210, <i>et seq.</i> Plaintiffs shall give notice of this ruling.
7	Nguyen vs. Nguyen 30-2025-01516682	<u>Demurrer</u> Cross-Defendant Giac Nguyen's Demurrer to Cross-Complainant's Cross-Complaint is SUSTAINED with 15 days leave to amend as to the 2nd, 3rd, and 5th Causes of Action, and OVERRULED as to the 1st and 4th Causes of Action. If Cross-Complainants Quynh Nguyen, Quy Nguyen, and Hanh Vu do not amend the Cross-Complaint within the period of time stated above, Cross-Defendant Giac Nguyen shall file an answer or other pleading in response to the remaining causes of action of the Cross-Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendant Giac Nguyen demurs to the 1st through 5th Causes of Action of the Cross-Complaint filed by Cross-Complainants Quynh Nguyen, Quy Nguyen, and Hanh Vu. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they

		may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) In addition, the “allegations must be liberally construed, with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) Nonetheless, it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>Standing</u> Cross-Defendant first contends that the 1st Cause of Action for Breach of Fiduciary Duty, 3rd Cause of Action for Fraud/Deceit by Concealment, and 4th Cause of Action for Constructive Fraud all fail because Cross-Complainants lack standing to assert claims for injuries that were suffered by Plaintiff J&Q, LLC. However, the Cross-Complaint alleges that Cross-Defendant’s breach of fiduciary duty caused injury to Cross-Complainants and not Plaintiff J&Q, LLC. (See Cross-Compl., ¶ 278 [“Giac’s breach was a substantial factor in causing Quynh’s and Quy’s harms and sustained damages in accordance to proof at trial but not less than \$200,000.”].) The same is true with respect to the injuries arising from Cross-Defendant’s alleged fraud/deceit by concealment and constructive fraud. (See <i>id.</i>, ¶¶ 39, 48 [“Giac’s breach was a substantial factor in causing cross complainants’ harms and sustained
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		damages in accordance to proof at trial but not less than \$200,000.”].) For purposes of this demurrer, the court must assume the truth of all properly pleaded factual allegations and the reasonable inferences that may be drawn from them. The court cannot determine, at this early stage, whether the harms alleged by Cross-Complainants were actually suffered by Cross-Complainants or Plaintiff J&Q, LLC. Further, while the allegations of the harms with respect to the 3rd and 4th Causes of Action are poorly drafted – pleading that the injuries were caused by Cross-Defendant’s “breach” rather than Cross-Defendant’s fraud/deceit or constructive fraud, the court must interpret the Cross-Complaint liberally and with an eye towards substantial justice. (See Code Civ. Proc., § 452.) The court will overrule the demurrer on this basis. <u>2nd Cause of Action (Failure to Pay Wages)</u> Cross-Complainants contend that this cause of action fails because it is nonsensical and uncertain. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) “[A] demurrer for uncertainty will not be sustained where the facts claimed to be uncertain or ambiguous are presumptively within the knowledge of the demurring party.” (<i>Ching v. Dy Foon</i> (1956) 143 Cal.App.2d 129, 136.) Here, “Failure to Pay Wages” is not a common law cause of action, and the Cross-Complaint does not indicate whether this cause of action sounds in contract law or another area of common law. Nor does the Cross-Complaint plead that this claim is made pursuant to the Labor Code or other statutory law.
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		The Cross-Complaint only alleges that “[Cross-Defendant] Giac and J&Q agreed to pay the cross complainants wages” and that “Cross Defendants’ failure to pay wages was a substantial factor in causing cross complainants’ harms in accordance to proof but not less than \$200,000.” (Cross-Compl., ¶¶ 30, 32.) Here, the Cross-Complaint’s failure to state what claim is being made makes it unduly difficult, if not impossible, for Cross-Defendant to respond. In addition, the allegation that “J&Q” (in addition to Cross-Defendant) agreed to pay for Cross-Complainants’ wages, creates further confusion such that Cross-Defendant cannot reasonably respond. Therefore, the court will sustain the demurrer to the 2nd Cause of Action. <u>3rd Cause of Action (Fraud/Deceit by Concealment)</u> “In California, fraud must be pled specifically” (<i>Lazar vs. Superior Court</i> (1996) 12 Cal.4th 631, 645; see also <i>Linear Technology Corp. v. Applied Materials, Inc.</i> (2007) 152 Cal.App.4th 115, 132 [“Fraud must be pleaded with specificity.”].) Concealment is a species of fraud, and “[] must be pleaded with specificity.” (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 878, quoting <i>Linear Technology Corp. v. Applied Materials, Inc.</i>, <i>supra</i>, 152 Cal.App.4th at p. 132.) As the Court of Appeal has explained: This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect. (<i>Wilhelm v. Pray, Price, Williams & Russell</i> (1986) 186 Cal.App.3d 1324, 1331.) “The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom,
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		and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made." (<i>West v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal.App.4th 780, 793.) Here, the Cross-Complaint does not contain the specificity required to plead fraud, such as the details of the misrepresentations. In fact, the Cross-Complaint's allegations of fraud/deceit by concealment essentially repeat the allegations that Cross-Defendant breached their fiduciary duties. (See Cross-Compl., ¶¶ 34-39.) Thus, the court will sustain the demurrer to the 3rd Cause of Action. <u>5th Cause of Action (Unjust Enrichment)</u> "[T]here is no cause of action in California for unjust enrichment. 'The phrase 'Unjust Enrichment' does not describe a theory of recovery, but an effect: the result of a failure to make restitution under circumstances where it is equitable to do so.'" (<i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal.App.4th 779, 793, quoting <i>Lauriedale Associates, Ltd. v. Wilson</i> (1992) 7 Cal.App.4th 1439, 1448.) In other words, "[u]njust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself." (<i>Melchior v. New Line Productions, Inc., supra</i>, 106 Cal.App.4th 779, 793, quoting <i>Dinosaur Development, Inc. v. White</i> (1989) 216 Cal.App.3d 1310, 1315.) Here, Cross-Defendant correctly points out that unjust enrichment is not normally a separate cause of action. However, courts have held that an unjust enrichment cause of action may survive a demurrer where it adequately pleads a quasi-contractual claim (i.e., that there was an express contract but that it "was procured by fraud or is unenforceable or ineffective for some reason" or "is void or was rescinded." (See <i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 231, quoting
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		<i>McBride v. Boughton</i> (2004) 123 Cal.App.4th 379, 388, and <i>Lance Camper Manufacturing Corp. v. Republic Indemnity Co.</i> (1996) 44 Cal.App.4th 194, 203; see also <i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 661 ["a typical cause of action involving [a restitution] remedy is 'quasi-contract.'"].) However, the Cross-Complaint fails to plead such a quasi-contractual claim. (See Cross-Compl., ¶¶ 51-52.) Accordingly, the court will sustain the demurrer to the 4th Cause of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.)
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		Here, while Cross-Complainants have not explained how they might amend the Cross-Complaint to state viable causes of action, the demurrer was asserted against the original Cross-Complaint. Thus, Cross-Complainants have not had an opportunity to amend the Cross-Complaint in response to the challenges made by Cross-Defendant. Accordingly, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) <u>Motion to Strike</u> Cross-Defendant Giac Nguyen's Motion to Strike Cross-Complainant's Cross-Complaint is GRANTED with 15 days leave to amend in part and DENIED in part. If Cross-Complainants Quynh Nguyen, Quy Nguyen, and Hanh Vu do not amend the Cross-Complaint within the period of time stated above, Cross-Defendant Giac Nguyen shall file an answer or other pleading in response to the remaining causes of action of the Cross-Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendant Giac Nguyen moves to strike allegations of and prayer for punitive damages, Paragraph 42, and portions of the 5th Cause of Action of the Cross-Complaint filed by Cross-
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		Complainants Quynh Nguyen, Quy Nguyen, and Hanh Vu. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) In addition, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.)
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		<u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).) In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc.</i>, <i>supra</i>, 175 Cal.App.4th at p. 715.)
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		"Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent or even reckless.'" (<i>Bell v. Sharp Cabrillo Hospital</i> (1989) 212 Cal.App.3d 1034, 1044, quoting <i>Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.</i> (1986) 185 Cal.App.3d 1149, 1155.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, citations and quotation marks omitted.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.) Here, the only causes of action left standing after the demurrer are the 1st and 4th Causes of Action. The crux of the allegations underlying those claims are that Cross-Defendant breached his or her fiduciary duties to Cross-Complainants by paying himself or herself without following the proper procedures, failing to pay Cross-Complainants, and failing to maintain corporate formalities and to pay sales taxes when due. (Cross-Compl., ¶¶ 22-28, 43-48.) These allegations do not sufficiently allege fraud, malice, or oppression to support imposition of punitive damages. Therefore, the court will grant the motion to strike the allegations of and prayer for punitive damages. <u>Paragraph 42</u> Cross-Defendant also seeks to strike Paragraph 42 of the Cross-Complaint as irrelevant because it cites to state and federal law in support of the 4th Cause of Action for Constructive Fraud. However, the Cross-Complaint alleges that these authorities relate to the law of constructive fraud. (See Cross-Compl., p 42.)
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		When the pleadings are construed liberally and with a view to substantial justice, the court cannot say that they are irrelevant or should be stricken. (See Code Civ. Proc., § 452.) Therefore, the court will deny the motion to strike Paragraph 42. <u>5th Cause of Action (Unjust Enrichment)</u> Cross-Defendant next requests that the court strike the allegation that the 5th Cause of Action for unjust enrichment is asserted against "Cross Defendant Kim Vo," (see Cross-Compl. at p. 9:12), because no such party is named in this case. Cross-Defendant is correct. Accordingly, the court will grant the motion to strike. <u>Leave to Amend</u> In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. As long as there is a reasonable possibility that plaintiffs can cure the defects, leave to amend is appropriate. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 168; <i>Price v. Dames & Moore</i> (2001) 92 Cal.App.4th 355, 360.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].)
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		As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, while Cross-Complainants have not explained how they might amend the Cross-Complaint to state viable causes of action, the motion to strike was asserted against the original Cross-Complaint. Thus, Cross-Complainants have not had an opportunity to amend the Cross-Complaint in response to the challenges made by Cross-Defendant. Accordingly, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (<i>See Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Cross-Defendant shall give notice of these rulings.
8	Ramirez vs. City of Santa Ana 30-2022-01287702	<u>Motion for Attorney's Fees</u> Defendant City of Santa Ana's Motion for Attorney's Fees in the Amount of \$554,413.50 and Costs in the Amount of \$293,141.29 is DENIED. <u>Pending Motion</u> Defendant City of Santa moves for an award of attorney's fees in the amount of \$554,413.50 and costs in the amount of \$293,141.29.

		<u>Standard for Motion for Attorney's Fees (in General)</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) The Fair Employment and Housing Act (FEHA) provides that "the court, in its discretion, may award to the prevailing party . . . reasonable attorney's fees and costs, including expert witness fees, except that . . . a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so." (Gov. Code, § 12965, subd. (c)(6).) This has been interpreted to mean that: [A] prevailing <i>plaintiff</i> should ordinarily receive his or her costs and attorney fees unless special circumstances would render such an award unjust. A prevailing <i>defendant</i>, however, should not be awarded fees and costs unless the court finds the action was objectively without foundation when brought, or the plaintiff continued to litigate after it clearly became so. (<i>Williams v. Chino Valley Independent Fire Dist.</i> (2015) 61 Cal.4th 97, 115, italics original, citation omitted.) In order to obtain an award of attorney's fees under Section 12965 based on the frivolousness of the plaintiff's case, the defendant must show that "the plaintiff brought or continued litigating the action without an objective basis for believing it had potential merit." (<i>Lopez v. Routt</i> (2017) 17 Cal.App.5th 1006, 1011.) Furthermore, "[a]n action is not frivolous simply because the plaintiff's FEHA claim failed." (<i>Baker v.</i>
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		<i>Mulholland Security & Patrol, Inc.</i> (2012) 204 Cal.App.4th 776, 784.) As the United States Supreme Court has warned in a similar situation, "it is important that a [trial] court resist the understandable temptation to engage in post hoc reasoning by concluding that, because a plaintiff did not ultimately prevail, his action must have been unreasonable or without foundation." (<i>Cummings v. Benco Building Services</i> (1992) 11 Cal.App.4th 1383, 1388, quoting <i>Christianburg Garment Co. v. EEOC</i> (1978) 434 U.S. 412, 421-422.) Here, Defendant contends that this this action was frivolous, unreasonable, or groundless from the outset as the law was always clear that Plaintiff could not claim that she was discriminated and retaliated against due to her membership in a "camp." However, it is not clear that at the inception of this lawsuit, Plaintiff knew that she had been discriminated or retaliated against because she would not join any of the groups within the Santa Ana Police Department. Rather, what she believed was that she adverse employment action was taken against her for no legitimate reason. She also knew that other women at her workplace had complained about being treated differently on the basis of gender and that she was treated worse after she reported this gender discrimination to her employer. Further, Defendant never challenged Plaintiff's claims in the early stages of this action or prior to trial by way of a demurrer, motion for judgment on the pleadings, or motion for summary judgment. At trial, the jury unanimously found in favor of Plaintiff and awarded her over \$2 million. In granting Defendant's Motion for Judgment Notwithstanding the Verdict, the court primarily relied upon the fact that there was insufficient evidence of a causal link between the protected activity and the adverse employment action. To make this causal connection, a plaintiff would primarily look to evidence that is in the possession or the minds of the defendant and its employees.
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		Here, Plaintiff could not reasonably be expected to have all of this evidence at the outset of the case and in fact, the lack of this evidence was not apparent until late in the trial. Even then, Plaintiff was not bereft of any evidence to show a causal link, although it is true that the evidence she did have was not sufficient to support the jury's verdict. The court cannot say that this action was frivolous, unreasonable, or groundless when brought, or that Plaintiff continued to litigate after it clearly became so. In addition, the Court of Appeal has explained that: Because the majority of cases under the FEHA involve litigants who would not have the financial means to prosecute this type of case, the public policy behind the FEHA is served by not discouraging them from pursuing the litigation by potentially imposing fees that could easily devastate them financially simply because a few file frivolous claims. Thus, a plaintiff's ability to pay must be considered before awarding attorney fees in favor of the defendant. (<i>Villanueva v. City of Colton</i> (2008) 160 Cal.App.4th 1188, 1203.) "[A]n award of attorney fees should not subject the plaintiff to financial ruin." (<i>Rosenman v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro</i> (2001) 91 Cal.App.4th 859, 868.) Here, no evidence has been presented about Plaintiff's ability to pay such a large award of attorney's fees, particularly because Plaintiff is a natural person and not a business entity. Therefore, the court will exercise its discretion and deny an award of attorney's fees. <u>Costs</u> Generally, the prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29-30.)
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		To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n</i>, <i>supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) Here, Defendant has filed a memorandum of costs, (see ROA #998), and Plaintiff has filed a motion to strike and/or tax costs, (see ROA #1006). Therefore, the court should properly decide the issue of costs when it hears the motion to strike and/or tax costs and Defendant's request for costs in this motion is premature. Accordingly, the court will deny Defendant's motion for costs without prejudice. Plaintiff shall give notice of this ruling.
10	Cano vs. O'Grady 30-2024-01410607	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is not tentative ruling in this matter. The court will hear oral argument from the parties or their counsel.

11	Carlin vs. Reiser 30-2025-01454477	<u>Joinder to Motion</u> Defendant David A. Esquibias' Joinder to the Motion to Dismiss Glen M. Reiser (Ret.) as A Defendant is GRANTED. The court previously granted Defendant Hon. Glen M. Reiser (Ret.)'s Motion to Dismiss as a Defendant. (See ROA #252.) Plaintiffs Gary R. Carlin and Law Offices of Cary R. Carlin, APC have not opposed this joinder or provided any reason why it should not be granted. Thus, Plaintiffs have waived any arguments regarding the joinder. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Accordingly, the court will grant the joinder. Defendant David A. Esquibias shall give notice of this ruling.